

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

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JEFFREY LOCHARD,

Plaintiff,

SUMMONS

Index No.:

-against-

Date Purchased:

THE CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT; SHAMAS REHMAN P.O., SHIELD #2026, COMMAND 802; JOHN DOE P.O. #1 - #5 AND JANE DOE P.O. #1 - #5 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN) ALL OFFICERS SUED IN THEIR INDIVIDUAL CAPACITY AND AS POLICE OFFICERS,

Plaintiff designates Kings County as the place of trial.

The basis of venue is that Kings County is the place where the cause of action arose.

Defendants,

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To the above-named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
June 21, 2024

/s/ Edward Pichardo
Law Office of Edward Pichardo, PLLC
Attorney for the Plaintiff
11 Broadway, Suite 615
New York, NY 10004

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Shamas Rehman, Shield # 2026
NYPD Housing PSA 2, Command 802
560 Sutter Avenue,
Brooklyn, NY 11207

Police Officers John Doe #1-5
Address Currently Unknown

Police Officers Jane Doe #1-5
Address Currently Unknown

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

-----X

JEFFREY LOCHARD,

Plaintiff,

VERIFIED COMPLAINT

Index No.:

-against-

Date Purchased:

THE CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT; SHAMAS REHMAN P.O., SHIELD #2026, COMMAND 802; JOHN DOE P.O. #1 - #5 AND JANE DOE P.O. #1 - #5 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN) ALL OFFICERS SUED IN THEIR INDIVIDUAL CAPACITY AND AS POLICE OFFICERS,

Defendants,

-----X

Plaintiff, Jeffrey Lochard by his attorneys, Law Office of Edward Pichardo, PLLC, as and for a Verified Complaint alleges as follows:

PARTIES

1. Upon information and belief and at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as “CITY” was and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief and at all times hereinafter mentioned the Defendant, New York City Police Department, hereinafter referred to as “NYPD”, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, and the New York City Department of Corrections hereinafter respectively referred to as “NYPD”, including all the Police Officers therein.

3. Upon information and belief, Police Officer Shamas Rehman, Shield #2026 of Command 802, hereinafter referred to as “Officer Rehman,” at all times hereinafter mentioned and on the 3rd day of October, 2023 was employed as a Police Officer by the “CITY” and/or “NYPD”, was assigned to Housing PSA 2, and were acting in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.
4. Upon information and belief, Police Officers John Doe #1-#5, hereinafter referred to as “John 1-5,” at all times hereinafter mentioned and on the 3rd day of October, 2023 were employed as Police Officers by the “CITY” and/or “NYPD”, were assigned to Housing PSA 2, and were acting in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.
5. Upon information and belief, Police Officers Jane Doe #1-#5, hereinafter referred to as “Jane 1-5” at all times hereinafter mentioned and on the 3rd day of October, 2023, were employed as Police Officers by the “CITY” and/or “NYPD”, were assigned to Housing PSA 2, and were acting in the capacity as Police Officers and employees of the City of New York, and/or New York City Police Department.
6. Hereinafter the police officers present at the locations set forth below are collectively referred to as “the Police Officers/Defendants”.
7. At all relevant times hereinafter mentioned, Plaintiff Jeffrey Lochard, hereinafter referred to as “Plaintiff”, and was a resident of Kings County, residing at 205 Albany Avenue #3F, Brooklyn, New York 11213.
8. The Plaintiff has filed a Notice of Claim advising of the nature of his claims. The Plaintiff submitted to a 50 h hearing on April 24, 2024.
9. The Defendants have not offered to settle the Plaintiff’s claims.
10. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

11. On October 3, 2023, at the approximate hour of 2:00 a.m., the Plaintiff was lawfully outside of his residence and when he tried to enter realized that his girlfriend's brother had locked him out of their shared apartment in the County of Kings within the State of New York.
12. Plaintiff's girlfriend is named Heaven Boyd (hereinafter "Heaven"), she is also the mother of his child.
13. Plaintiff attempted to enter the residence but was prevented from doing so by Heaven's brother.
14. Defendant Police Officers arrived shortly thereafter and when Plaintiff saw them, he approached with both of his hands raised in the air to show that he did not pose any threat to anyone, including the Defendants.
15. Defendant Police Officers did not say anything to Claimant or ask any questions and immediately grabbed him, slamming him onto the ground, face and chest first.
16. Plaintiff suffered bruising and scarring to his head as well as a broken right hand and left finger.
17. During his encounter with Defendant Police Officers, Plaintiff explained that he lived at the location, but was arrested anyway without any reasonable investigation or inquiry. Defendant Police Officers never asked for identification.
18. Plaintiff was taken to PSA 2 and eventually to Brooklyn Central Booking.
19. Plaintiff was held in custody for approximately three days. He was eventually released on his own recognizance on supervised release.
20. Claimant was prosecuted and was compelled to appear in Court.
21. Shortly after his release, Claimant sought medical treatment at Interfaith Hospital.

22. Plaintiff underwent surgery for his broken hand and finger. The injuries required physical therapy.

23. The charges against the Plaintiff were eventually dismissed.

24. As a result of the Defendant Police Officers actions, Plaintiff suffered trauma, pain, fear, shock and embarrassment.

AS AND FOR A FIRST CAUSE OF ACTION AGAINST
ALL DEFENDANTS FOR FALSE DETENTION/ARREST/IMPRISONMENT ON
BEHALF OF THE PLAINTIFF RESPECTIVELY ALLEGES:

25. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "24" with the same force and effect as if more fully and at length set forth herein.

26. That on the 3rd day of October, 2023, at the approximate hour of 2:00 a.m., the Defendants, and their agents, servants and/or employees intentionally held, detained, imprisoned and/or arrested the Plaintiff without any just cause or grounds therefore.

27. Said Plaintiff was held against his will under full force of arms.

28. Plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his false detention, imprisonment and/or arrest by the Defendants, their agents, servants and/or employees and was forced to submit to having his freedom restricted and said imprisonment entirely against his will.

29. That the Defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine the Plaintiff's movement and freedom; the Plaintiff was conscious of his confinement; the Plaintiff did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.

30. That by reason of the aforesaid false detention, imprisonment and/or arrest of the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and said Plaintiff has been otherwise damaged.

31. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF AGAINST ALL NAMED DEFENDANTS FOR BATTERY AND ASSAULT PLAINTIFF ALLEGES:

32. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31" with the same force and effect as if more fully and at length set forth herein.

33. That commencing on the 3rd day of October, 2023 at the approximate hour of 2:00 a.m., at the "the location", the Defendant officers and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the Defendant the "CITY" and "NYPD", without just cause or provocation falsely detained, imprisoned, arrested, battered, assaulted, and violated Plaintiff's civil rights.

34. Upon information and belief, the officers had absolutely no reason or just cause to have falsely detained, imprisoned, arrested, battered, assaulted, and violated Plaintiff's civil rights.

35. The battery and assault and physical contact was not privileged.

36. The battery and assault took place while the Plaintiff had committed no crime.

37. That the Defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the Defendant "CITY"

and/or “NYPD”, within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered the named Plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to “the Plaintiff”.

38. That said acts caused apprehension of such offensive contact to “the Plaintiff”, and the Defendants caused such battery and assault in and about his body and limbs.

39. That by reason of the aforesaid intentional battery and assault, Plaintiff suffered offensive contact and/or psychological injuries to his body mind, and that he otherwise damaged.

40. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A THIRD CAUSE OF ACTION AGAINST ALL NAMED
DEFENDANTS, POLICE OFFICERS AS OFFICERS AND INDIVIDUALLY FOR
EXCESSIVE FORCE UNDER STATE LAW THE PLAINTIFF ALLEGES:**

41. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully and at length set forth herein.

42. That commencing on the 3rd day of October, 2023 at the approximate hour of 2:00 a.m., at the “the location”, the Defendant officers and upon information and belief other officers presently unknown, while acting in the scope of their employment as police officers and as agents for the Defendant the “CITY” and “NYPD”, without just cause or provocation falsely detained, imprisoned, arrested, battered, assaulted, used excess force and violated Plaintiff’s civil rights.

43. Upon information and belief, the officers had absolutely no reason or just cause to falsely

detain, imprison, arrest, batter, assault, use excessive force and violate the Plaintiff's civil rights.

44. The use of excessive force was not privileged.

45. The use of excessive force took place while the Plaintiff had committed no crime.

46. That the Defendants, their agents, servants and/or employees, including unknown police officers, and the arresting officers, acting as agents on behalf of the Defendant "CITY" and/or "NYPD", within the scope of their employment, intentionally, willfully, and maliciously battered, assaulted and used excessive force against the named Plaintiff, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiff.

47. That said acts caused apprehension of such offensive contact to the Plaintiff, and the Defendants caused such battery, assault and use of excessive force in and about his body and limbs.

48. That by reason of the aforesaid intentional battery, assault, and use of excessive force Plaintiff suffered offensive contact and/or psychological injuries to his body mind, and that each was otherwise damaged.

49. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS FOR A FOURTH CAUSE OF ACTION AGAINST ALL NAMED DEFENDANTS, POLICE OFFICERS AS OFFICERS AND INDIVIDUALLY FOR EXCESSIVE FORCE-42 U.S.C. 1983 VIOLATIONS THE PLAINTIFF ALLEGES:

50. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "49" with the same force and effect as if more fully and

at length set forth herein.

51. By the aforesaid acts, the Defendant “officers” individually and collectively have violated Plaintiff’s right: to privacy under the First and Fourteenth Amendments, to have his home and person be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race and excessive force thereby giving rise to a cause of action pursuant to 42 USC 1983.
52. The conduct and actions of the named Defendants police officers, acting under color of law, in seizing Plaintiff; battering and/or assaulting Plaintiff; threatening the Plaintiff; falsely imprisoning, falsely arresting, and upon information and belief in searching Plaintiff; and using police equipment inappropriately were all done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts and done without lawful justification designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff’s Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq., Each Defendant-Officer used excessive and unwarranted force.
53. Each of the Defendants’-Officers’ individually and collectively deprived Plaintiff of his rights including, but not limited to the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. 1983 et seq.
54. That by reason of the aforesaid, Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorney’s fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR NEGLIGENCE
AGAINST THE "CITY" THE PLAINTIFF ALLEGES**

55. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "54" with the same force and effect as if more fully and at length set forth herein.
56. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the Defendants named herein.
57. That as a result of their negligence, the above-named Plaintiff was falsely imprisoned, falsely arrested, illegally seized, illegally searched, battering, assaulting and had his constitutional and civil rights violated.
58. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SIXTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTIONs 1983 and 1988, BY "ALL
POLICE OFFICERS/DEFENDANTS" FOR FAILING TO INTERVENE AND
MITIGATE AND FOR VIOLATING PLAINTIFF'S RIGHT TO EQUAL PROTECTION
UNDER THE LAW**

59. The Plaintiff repeats, reiterates and realigns each and every allegation contained in paragraphs marked "1" through "58" with the same force and effect as if more fully and at length set forth herein.
60. That at all times hereinafter mentioned, and on October 3, 2023, all named Police Officers/Defendants were employed by the Defendant, The City of New York, and/or The New York City Police Department, and was acting under the color of his/their official

capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York, i.e. color of law.

61. That at all times, all of the named Police Officers/Defendants were acting pursuant to orders, directives, training, supervision and guidelines from Defendant, The City of New York.

62. That during all times hereinbefore and hereinafter mentioned, all named Police Officers/Defendants acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that he acted under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the Plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

63. That on the date, time and location the Plaintiff was lawfully standing outside of his home and exercising his First and Fourth Amendment rights when confronted by the Defendants-Officers.

64. That the Plaintiff was not interfering with their official functions.

65. That the named Officers/Defendants were acting in concert with each other and used excessive/unwarranted physical force against the Plaintiffs in that the Plaintiff was battered and assaulted and had his 4th Amendment Rights violated.

66. That upon information and belief all the named Police Officers/Defendants, were present during said conduct, observed said conduct, had the ability to stop and/or mitigate said conduct of their fellow Officer and elected not to do so, causing injury to the Plaintiff.

67. That upon information and belief the named Police Officers/Defendants failed to report said misconduct of their fellow officer, and/or failed to provide the Plaintiff with equal protection under the law.
68. That as a direct proximate result of the Defendants' actions the Plaintiff was subjected to physical injury, and subsequent arrest and confiscation of property.
69. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys' fees, expert fees, and interest as set forth and provided by 42 U.S.C. Sections 1983 and 1988 against each named Defendant, and such other relief as to the court may seem just and proper.

AS AND FOR A SEVENTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983, 1988, BY "THE POLICE
OFFICERS/DEFENDANTS", IN THEIR INDIVIDUAL CAPACITIES AND AS AGENTS
OF THE CITY OF NEW YORK

70. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "69" with the same force and effect as if more fully and at length set forth herein.
71. That at all times hereinafter mentioned, the Defendant "officers" were employed by the Defendant The City of New York and/or The New York City Police Department and was acting under the color of their official capacities and their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.
72. That at all times, the Defendant officers were acting pursuant to orders and directives from Defendant, "City".
73. That during all times hereinafter mentioned, "The Police Officers/Defendants" acted

under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of the “City” and/or New York City Police Department and that “the officers” were acting under the color and pretense of law, when they, individually and collectively, engaged in the illegal conduct set forth in this complaint to the injury of the Plaintiff, and deprived him of his rights, privileges and immunities secured to him by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and 1986.

74. That the unlawful and illegal conduct of the Defendants deprived Plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of Plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of Plaintiff not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States; and
- c) The right not to be subjected to cruel and unusual punishment; and
- d) The right to freedom of speech; and
- e) The right to Due Process of Law

75. That by reason of the aforesaid violations, use of force, use of arbitrary, and excessive force, seizure of Plaintiff’s person, destruction of evidence, falsification of evidence and/or reports, false arrest and false imprisonment, assault and battery, malicious

prosecution, engaging in a cover-up, and threatening the Plaintiff, the Defendant “City and NYPD”, and the named Police Officers/Defendants, violated Plaintiff’s rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto. The NYPD, Defendant-Police Officers, and the City under the doctrine of respondeat superior, violated 42 U.S.C. §1983.

76. That as a direct proximate result of the Defendants actions the Plaintiff, was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

77. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, by the actions of “the Police Officers/Defendants”, individually and collectively.

78. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys’ fees, expert fees, as set forth and provided by 42 U.S.C.

Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION
AGAINST THE “CITY” ON BEHALF OF PLAINTIFF ALLEGES:**

79. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "78" with the same force and effect as if more fully and at length set forth herein.

80. The Defendants filled out false police reports and issued a Misdemeanor and Felony Accusatory instrument against the Plaintiff for the purpose of prosecuting him for the charge that they knew that he did not commit.
81. The Police Officers/Defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to cover up the illegal arrest of the Plaintiff and the injuries that he sustained at the hands of the police.
82. The Plaintiff was at all times innocent of any crime charged.
83. That due to the malicious prosecution the Plaintiff was caused to be in convalescence and take time from employment to defend himself as well as forego an employment opportunity.
84. That by reason of the aforesaid malicious prosecution, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the Plaintiff demands judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the eighth causes of action, plus attorney's fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
June 21, 2024

/s/ Edward Pichardo
EDWARD PICHARDO, ESQ.
LAW OFFICE OF EDWARD PICHARDO PLLC
Attorneys for Plaintiff
Law Office of Edward Pichardo PLLC
11 Broadway, Suite 615
New York, New York 10004
(718) 514-9099

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the firm of Law Office of Edward Pichardo, PLLC, and am the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 21, 2024

/s/ Edward Pichardo
By: EDWARD PICHARDO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JEFFREY LOCHARD,

Plaintiff,

-against-

THE CITY OF NEW YORK; NEW YORK CITY POLICE DEPARTMENT; SHAMAS REHMAN P.O., SHIELD # 2026, COMMAND 802; JOHN DOE P.O. #1 - #5 AND JANE DOE P.O. #1 - #5 (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE CURRENTLY UNKNOWN) ALL OFFICERS SUED IN THEIR INDIVIDUAL CAPACITY AND AS POLICE OFFICERS,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

Law Office of Edward Pichardo PLLC
Attorneys for Plaintiffs
11 Broadway, Suite 615
New York, NY 10004
(718) 514-9099

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, N.Y. 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

P.O. Shamas Rehman
NYPD PSA 2
560 Sutter Avenue
Brooklyn, NY 11207

To: All named Defendants herein

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 21, 2024

Signature /s/ Edward Pichardo
EDWARD PICHARDO, ESQ.

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PLEASE TAKE NOTICE

[] NOTICE OF ENTRY

that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on

[] NOTICE OF SETTLEMENT

that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on